Congressional Research Service
Informing the legislative debate since 1914

National Park Service Deferred Maintenance: Overview and Issues

Updated October 15, 2026

Congressional Research Service
https://crsreports.congress.gov
R48136

CRS REPORT
Prepared for Members and
Committees of Congress

Congressional Research Service
Informing the legislative debate since 1914

SUMMARY

R48136

October 15, 2026

Laura B. Comay
Specialist in Natural Resources Policy

National Park Service Deferred Maintenance: Overview and Issues

The National Park Service (NPS) has a multibillion-dollar backlog of *deferred maintenance*—maintenance that was not performed as scheduled or as needed and was put off to a future time. NPS's deferred maintenance, also known as *deferred maintenance and repairs* or the *maintenance backlog*, was estimated for FY2025 at $24.237 billion. Other federal land management agencies also have deferred maintenance, but NPS's backlog is the largest and has drawn the most congressional attention.

During the past decade (FY2016-FY2025), NPS deferred maintenance grew by $12.906 billion (+114%) in nominal dollars and $7.263 billion (+43%) in inflation-adjusted dollars. Many factors might contribute to the growth or reduction of deferred maintenance, including the aging of NPS assets, availability of funding for maintenance activities, acquisition of new assets, agency management of the backlog, completion of individual projects, changes in construction and related costs, and alterations in the methods used to estimate deferred maintenance. NPS reported that a 60% nominal-dollar increase in the backlog between FY2020 and FY2021 was due in part to changes in how the agency estimates deferred maintenance. NPS's deferred maintenance is distributed unevenly among states and territories, with California, the District of Columbia, Arizona, and Wyoming having the largest amounts. The amounts also vary among individual park units. Among the various types of assets that NPS maintains, deferred maintenance is highest for the agency's paved roads and buildings.

Sources of funding to address NPS deferred maintenance have included discretionary and mandatory appropriations, allocations from the Department of Transportation, park entrance and concessions fees, and donations, among others. Often it is not possible to determine the total amount of funding from these sources that NPS has allocated each year to address deferred maintenance, because NPS does not aggregate these amounts in its budget reporting. In 2020, the Great American Outdoors Act (GAOA; P.L. 116-152) provided a major new source of mandatory funding to address deferred maintenance of NPS and other federal land management agencies. The GAOA's National Parks and Public Land Legacy Restoration Fund (LRF) received $1.9 billion annually for five years (FY2021-FY2025), with 70% of the funds—approximately $1.3 billion annually—going to NPS. In the 119th Congress, H.R. 9250 and S. 1547 would reauthorize deposits to the fund for FY2027-FY2031. For more information, see CRS Insight IN12729, *Legacy Restoration Fund for Deferred Maintenance: 119th Congress Reauthorization Bills*.

Congressional attention in the 118th and 119th Congresses has focused on NPS's use of the LRF funding provided under the GAOA, including the agency's project selection priorities, the funds' impact in addressing the backlog, the reasons for changes in NPS's deferred maintenance estimates, and proposals to reauthorize deposits to the LRF. Separately from the LRF, Congress also has debated the sufficiency of ongoing annual appropriations for NPS deferred maintenance, as well as appropriations for preventive maintenance that could keep assets from deteriorating to the point that deferred maintenance is accrued. Some in Congress also have expressed interest in potential actions to reduce the backlog without additional funding, such as through public-private partnerships or disposal of unneeded assets.

Contents

General Background 1
What Is Deferred Maintenance? 1
NPS's Deferred Maintenance Backlog 2
NPS Deferred Maintenance by State and Park 5
Estimating NPS Deferred Maintenance 7
Funding for NPS Deferred Maintenance 9
The Legacy Restoration Fund 10
Annual Appropriations for NPS Deferred Maintenance 11
Transportation Funding from the Highway Trust Fund 12
Park Entrance and Recreation Fees 12
Concessions Franchise Fees 13
Other NPS Funding for Deferred Maintenance 13
Issues for Congress 14

Figures

Figure 1. NPS Deferred Maintenance Estimates, FY2016-FY2025 3

Tables

Table 1. National Park Service (NPS) Deferred Maintenance Estimates, FY2025 2
Table 2. NPS Deferred Maintenance Estimates, FY2016-FY2025 3
Table 3. States and Territories with the Highest NPS Deferred Maintenance, FY2025 5
Table 4. NPS Units with the Highest Deferred Maintenance, FY2025 6

Contacts

Author Information 17

The National Park Service's (NPS's) backlog of *deferred maintenance* (DM)—maintenance that was not performed as scheduled or as needed—is of ongoing interest to Congress. The agency estimated its DM needs for FY2025 at $24.237 billion.[1] Although other federal land management agencies also have DM backlogs, NPS's backlog is the largest.[2] Because unmet maintenance needs may damage park resources, adversely affect visitors' enjoyment of the parks, and jeopardize safety, NPS DM has been a topic of concern for Congress and for nonfederal stakeholders. Potential issues for Congress include, among others, how to weigh NPS's maintenance needs against other financial demands within and outside the agency, how to prioritize limited DM funding among multiple parks and types of infrastructure, and how to ensure that NPS is efficiently and successfully managing funds to reduce the backlog. This report provides an overview and discussion of issues related to NPS DM. The report begins with general background and then contains more detailed sections on estimates of NPS DM, agency funding to address DM, and issues under consideration in the 119th Congress.

General Background

What Is Deferred Maintenance?

The Federal Accounting Standards Advisory Board (FASAB) defines *deferred maintenance and repairs* (DM&R) as "maintenance and repairs that were not performed when they should have been or were scheduled to be and which are put off or delayed for a future period."[3] Federal agencies and Members of Congress also refer to DM&R as *deferred maintenance* (DM, the term used in this report) or as the *maintenance backlog*.[4] The term DM encompasses both maintenance and repair needs.

As suggested by the above definition, DM does not include *all* maintenance and repairs, only those that were not accomplished when scheduled or needed and were put off to a future time. Another type of maintenance is *cyclic maintenance*—that is, maintenance performed at regular intervals to prevent asset deterioration, such as to replace a roof or upgrade an electrical system at a scheduled or needed time.[5] Although NPS considers cyclic maintenance separately from DM for budgeting purposes, NPS has emphasized the importance of cyclic maintenance for preventing

[1] National Park Service (NPS), "Infrastructure: By the Numbers," https://www.nps.gov/subjects/infrastructure/deferred-maintenance.htm.

[2] For discussion of deferred maintenance of multiple federal land management agencies, see CRS Report R43997, *Deferred Maintenance of Federal Land Management Agencies: FY2013-FY2022 Estimates and Issues*, by Carol Hardy Vincent.

[3] Financial Accounting Standards Advisory Board (FASAB), *Statement of Federal Financial Accounting Standards 42: Deferred Maintenance and Repairs: Amending Statements of Federal Financial Accounting Standards 6, 14, 29 and 32*, April 25, 2012, p. 5, as contained in FASAB, *FASAB Handbook of Federal Accounting Standards and Other Pronouncements, as Amended, as of June 30, 2025*, https://files.fasab.gov/pdffiles/2025_FASAB_Handbook.pdf. The FASAB is a federal advisory committee that develops accounting standards for U.S. government agencies.

[4] Historically, NPS referred to its deferred maintenance and repair needs as DM rather than DM&R. In FY2022, NPS changed its terminology to DM&R to accord with the term used by the FASAB. DOI Office of Inspector General (OIG), *The National Park Service Faces Challenges in Managing Its Deferred Maintenance*, September 2023, pp. 5 (footnote 7) and 33, https://www.doioig.gov/sites/default/files/2021-migration/Final%20Evaluation%20Report_NPS%20Deferred%20Maintenance_Public.pdf; hereinafter cited as "DOI OIG September 2023 report."

[5] The Government Accountability Office (GAO) defines *cyclic maintenance* as "significant, regularly occurring maintenance projects designed to prevent assets from degrading to the point that they need to be repaired." GAO, *National Park Service: Process Exists for Prioritizing Asset Maintenance Decisions, But Evaluation Could Improve Efforts*, GAO-17-136, January 2017, p. 11, http://www.gao.gov/products/GAO-17-136; hereinafter cited as "GAO January 2017 report."

accrual of DM.[6] NPS also performs routine, day-to-day maintenance as part of its *facility operations* activities; such activities include, for example, mowing and weeding landscapes and trails, conducting custodial and janitorial functions, and removing litter.[7]

NPS's Deferred Maintenance Backlog

NPS estimated its total DM for FY2025 (the most recent year available) at $24.237 billion (**Table 1**).[8] Although all four major federal land management agencies—NPS, the Bureau of Land Management (BLM), the U.S. Fish and Wildlife Service (FWS), and the U.S. Forest Service (FS)—have DM backlogs, NPS's backlog is the largest. For FY2025, NPS's DM was more than twice that reported by FS, more than three times that reported by BLM, and nearly seven times that reported by FWS.[9] One factor in the difference may be that NPS has more infrastructure assets (over 70,000 assets) than the other land management agencies.[10] DM for the four agencies and agency asset comparisons are discussed further in CRS Report R43997, *Deferred Maintenance of Federal Land Management Agencies: FY2013-FY2022 Estimates and Issues*.

Table 1. National Park Service (NPS) Deferred Maintenance Estimates, FY2025

($ in billions)

Asset Category	FY2025 DM Estimate
Paved Roads	$8.320
Buildings	$5.111
Water Systems	$1.525
Unpaved Roads	$0.995
Trails	$0.723
Wastewater Systems	$0.567
Housing	$0.467
Campgrounds	$0.117
All Others	$6.411
Total	**$24.237**

Sources: NPS, *Budget Justifications and Performance Information, Fiscal Year 2027*, pp. 179-180.

Notes: DM = deferred maintenance. Totals may not sum precisely due to rounding. "Paved Roads" includes paved roadways, bridges, and tunnels. "All Others" includes utility systems, dams, constructed waterways,

[6] See, for example, NPS, *Budget Justifications and Performance Information, Fiscal Year 2025*, p. ONPS-70. NPS's budget justifications for multiple years are available at https://www.nps.gov/aboutus/budget.htm. In this report, NPS budget justifications will hereinafter be cited by fiscal year, such as "NPS FY2027 budget justification."

[7] NPS FY2027 budget justification, p. 32.

[8] National Park Service (NPS), "Infrastructure: By the Numbers," https://www.nps.gov/subjects/infrastructure/deferred-maintenance.htm. Also see Department of the Interior (DOI), "Deferred Maintenance and Repair," https://www.doi.gov/deferred-maintenance-and-repair, including relevant data in the Excel table that can be downloaded in the "Footnotes" section of the "DM by State" table.

[9] For FY2025 DM estimates for NPS, the Bureau of Land Management (BLM), and the U.S. Fish and Wildlife Service (FWS), see DOI, "Deferred Maintenance and Repair," https://www.doi.gov/deferred-maintenance-and-repair. The data for the Forest Service (FS) are from Quarter 1 of FY2026, because FS data were not publicly available for Quarter 4 of FY2025. See FS, "FY 2026 Congressional Directives Responses: Deferred Maintenance, 1st Quarter," https://www.fs.usda.gov/sites/default/files/fy26-q1-deferred-maint-report.pdf.

[10] NPS, "Infrastructure: By the Numbers," https://www.nps.gov/subjects/infrastructure/deferred-maintenance.htm. NPS defines an *asset* as "real property that the National Park Service tracks and manages as a distinct, identifiable entity. These entities may be physical structures or groupings of structures; landscapes; or other tangible properties that have a specific service or function."

marinas, aviation systems, railroads, ships, monuments, fortifications, towers, interpretive media, and amphitheaters. Separately, NPS's FY2027 budget justification contains an alternate method of asset categorization, created by the Department of the Interior (DOI) for common reporting across DOI bureaus. For a breakdown according to this alternate categorization method, see p. 180 of the budget justification.

NPS's DM estimates have increased over the past decade (FY2016-FY2025) in both nominal and inflation-adjusted dollars. **Figure 1** and **Table 2** show a growth in NPS DM of $12.906 billion (+114%) in nominal dollars and $7.263 billion (+43%) in inflation-adjusted dollars over the decade. In particular, NPS's DM estimate rose by 60% in nominal dollars (51% in inflation-adjusted dollars) in a single year (FY2020-FY2021), which NPS attributed in part to changes in its methods for estimating DM (see discussion below, "Estimating NPS Deferred Maintenance").

Figure 1. NPS Deferred Maintenance Estimates, FY2016-FY2025

($ in billions; nominal and inflation-adjusted 2025 dollars)

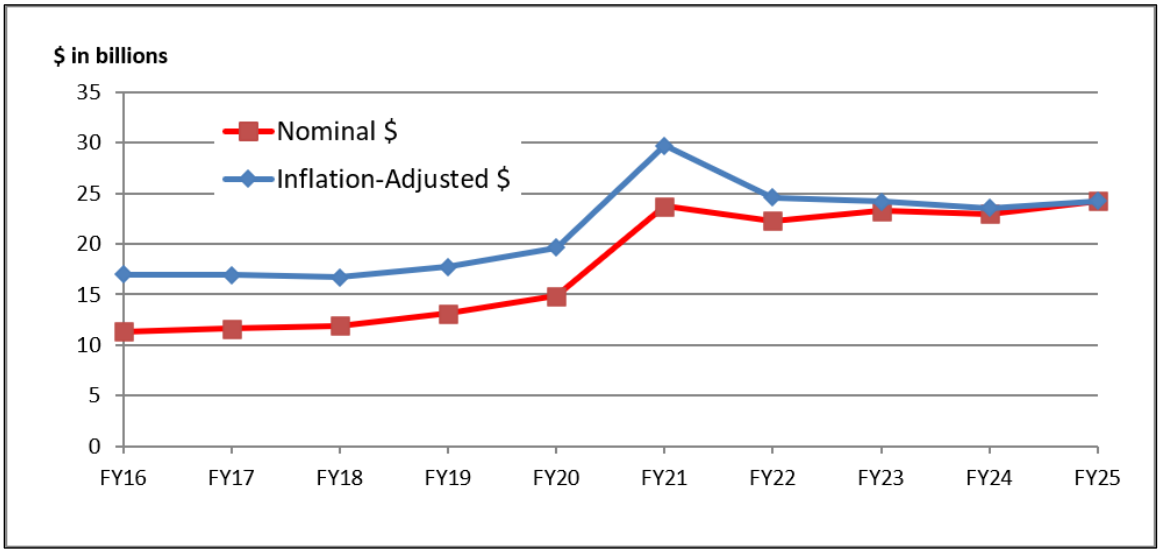


Table 2. NPS Deferred Maintenance Estimates, FY2016-FY2025

($ in billions; nominal and inflation-adjusted 2025 dollars)

	Nominal $	Inflation-Adjusted $
FY2016	11.332	16.975
FY2017	11.607	16.943
FY2018	11.920	16.707
FY2019	13.131	17.711
FY2020	14.851	19.620
FY2021	23.745	29.688
FY2022	22.288	24.560
FY2023	23.258	24.170
FY2024	22.988	23.570
FY2025	24.237	24.237
Change, FY2016-FY2025	**+12.906**	**+7.263**

Sources for Figure 1 and Table 2: Nominal-dollar estimates for FY2016-FY2018 were archived by CRS from the NPS website. Nominal-dollar estimates for FY2019-FY2022 are from CRS communication with NPS Office of Legislative and Congressional Affairs, July 27, 2023. Nominal dollar estimates for FY2023-FY2025 are from NPS, "Infrastructure: By the Numbers," https://www.nps.gov/subjects/infrastructure/deferred-maintenance.htm; and

CRS communication with NPS Office of Legislative and Congressional Affairs, September 11, 2026. Adjustments for inflation (2025 dollars) use Bureau of Economic Analysis Table 3.9.4, "Price Indexes for Government Consumption Expenditures and Gross Investment," nondefense structures, annual indexes, https://apps.bea.gov/itable/?reqid=19&step=2&isuri=1&categories=survey. Totals may not sum precisely due to rounding.

Notes for Figure 1 and Table 2: Through FY2022, NPS's estimates of its own deferred maintenance (DM) differed from estimates of NPS DM made by the Department of the Interior (DOI) for annual departmental financial reports; see the section on "Estimating NPS Deferred Maintenance," below, for discussion. The FY2016-FY2022 DM estimates shown here are NPS's own estimates. For the estimates used in DOI financial reports during this time, see CRS Report R43997, *Deferred Maintenance of Federal Land Management Agencies: FY2013-FY2022 Estimates and Issues*, by Carol Hardy Vincent. For FY2023-FY2025, NPS's estimates of its DM are the same as DOI's estimates.

Multiple factors may contribute to growth or reduction of NPS DM. One key driver of growth in NPS maintenance needs has been the increasing age of agency infrastructure. Many NPS assets—such as visitor centers, roads, and other assets—were constructed by the Civilian Conservation Corps in the 1930s or as part of NPS's Mission 66 infrastructure initiative in the 1950s and 1960s.[11] As these structures have reached or exceeded the end of their anticipated life spans, unfunded costs of repair or replacement have contributed to the DM backlog. Further, observers point out that as time goes by and needed repairs are not made, the rate at which such assets deteriorate accelerates, potentially leading to higher maintenance costs.[12]

A related key factor is the amount of funding available to NPS to address DM. The sources and amounts of agency funding for DM have fluctuated over time and are discussed in greater detail below, in the section on "Funding for NPS Deferred Maintenance." In addition to funding for DM specifically, funding for routine and cyclic maintenance can affect DM, if a lack of available funds results in scheduled maintenance being deferred.

Some observers have expressed concern that growth in NPS DM may be at least partly due to inefficiencies in the agency's asset management strategies and/or the implementation of these strategies. NPS has taken steps over the past decade to improve its asset management systems and strategies. The Government Accountability Office (GAO) and the Department of the Interior's (DOI's) Office of Inspector General (OIG) have recommended further improvements.[13] Some aspects of NPS management of the DM backlog are discussed further in the report sections below.

Another issue is that the methods used by NPS to estimate DM have changed over time. NPS's methods are discussed in the section on "Estimating NPS Deferred Maintenance." In particular, NPS attributed a large jump in estimated DM between FY2020 and FY2021 partly to changes in its estimation methods, and additional changes have been implemented in other years. Also, NPS has worked to build and maintain a complete and accurate data set during the past decade.[14] What

[11] The Civilian Conservation Corps was a 1930s program established by President Franklin Roosevelt to create jobs and enhance the nation's natural resources. Under the Mission 66 program, Congress appropriated roughly $1 billion over a decade for NPS infrastructure improvements, leading up to NPS's 50th anniversary in 1966.

[12] GAO, *Deferred Maintenance: Agencies Generally Followed Leading Practices in Selections but Faced Challenges*, GAO-24-106495, January 2024, p. 1, https://www.gao.gov/products/gao-24-106495 (hereinafter cited as "GAO January 2024 report"): "We have also previously found that deferring or delaying maintenance can diminish the quality of an asset and, in the long term, can shorten the life and value of an asset. Deferred maintenance may also result in significantly higher maintenance and repair costs." DOI OIG September 2023 report, p. 3: "Deferring maintenance may result in significantly higher maintenance and operating costs or, in some cases, premature asset replacement."

[13] See, for example, DOI OIG September 2023 report, and GAO January 2017 report.

[14] For example, during the past decade, NPS was completing baseline assessments of the maintenance needs of its non-industry-standard assets (NPS FY2017 budget justification, pp. ONPS-Ops&Maint-7 to ONPS-Ops&Maint-8). The DOI OIG September 2023 report raised additional issues related to overall data accuracy in NPS's records (DOI OIG September 2023 report, pp. 14-16).

portion of the overall change in NPS DM over the decade may be attributable to changes in methodology or data completeness, rather than to other factors, remains unclear.

From year to year, the completion of individual projects, changes in construction and repair costs, and similar factors play a role in the growth or reduction of NPS DM. The DM amounts reported by NPS for each fiscal year represent a snapshot of the backlog on the applicable date. The amount of DM changes frequently as NPS managers and staff complete or cancel maintenance work, recalculate costs, and record new maintenance and repair needs.

NPS Deferred Maintenance by State and Park

NPS and DOI report DM estimates by individual park and by state and territory on their respective websites.[15] The 20 states and territories with the highest FY2025 NPS DM are shown in **Table 3**.

Table 3. States and Territories with the Highest NPS Deferred Maintenance, FY2025

($ in billions)

State/Territory	NPS DM Estimate, FY2025
California	4.296
Washington, DC	2.054
Arizona	1.722
Wyoming	1.526
Virginia	1.487
New York	1.193
Pennsylvania	0.837
Washington (state)	0.724
North Carolina	0.677
Maryland	0.669
Massachusetts	0.646
Colorado	0.624
Utah	0.622
Florida	0.528
Hawaii	0.522
Mississippi	0.500
New Jersey	0.474
Texas	0.469
Nevada	0.431
Tennessee	0.361

Source: CRS, using data from DOI, "Deferred Maintenance and Repair," https://www.doi.gov/deferred-maintenance-and-repair. DM = deferred maintenance.

The states and territories with the highest NPS DM are not necessarily those with the most park acreage. For example, Alaska contains almost two-thirds of the total acreage in the National Park

[15] For deferred maintenance by park unit, see NPS, "Infrastructure: By the Numbers," https://www.nps.gov/subjects/infrastructure/deferred-maintenance.htm. For deferred maintenance by state/territory, see DOI, "Deferred Maintenance and Repair," https://www.doi.gov/deferred-maintenance-and-repair. In this report, the term *states and territories* is inclusive of Washington, DC.

System but accounts for 1% of the agency's DM backlog. Instead, the amount, type, and condition of infrastructure in the NPS units, along with other factors, combine to determine the NPS DM in each state or territory. For example, paved roads are a major component of NPS DM, and the states and territories with NPS-administered parkways—such as the George Washington Memorial Parkway (Virginia, Maryland, and Washington, DC), the Natchez Trace Parkway (mainly in Mississippi and Tennessee), and the Blue Ridge Parkway (North Carolina and Virginia)—are all among the 20 states and territories with the highest DM.

Table 4 shows the 20 individual park units with the highest amounts of DM. Various factors may contribute to the relatively high DM estimates for these park units as compared with others. For example, some units, such as Yellowstone National Park and Grand Canyon National Park, are older parks whose infrastructure was largely built in the mid-20th century. Some units, such as Gateway National Recreation Area, Golden Gate National Recreation Area, and the National Mall and Memorial Parks, are located in or near urban areas and may contain more developed infrastructure than some more remotely located parks. The costs of labor and materials to execute DM projects also may be higher in these urban areas. Three of the units with the highest estimated DM are national parkways, consistent with the relatively high portion of NPS's overall DM that is related to road needs.

Table 4. NPS Units with the Highest Deferred Maintenance, FY2025

($ in billions)

Park Unit	State/Territory	NPS DM Estimate, FY2025
National Mall and Memorial Parks	DC	Approx. 1.300[a]
Yellowstone National Park	ID, MT, WY	1.161
Yosemite National Park	CA	1.125
Grand Canyon National Park	AZ	1.101
Gateway National Recreation Area	NJ, NY	0.885
George Washington Memorial Parkway[b]	DC, MD, VA	0.729
San Francisco Maritime National Historical Park	CA	0.639
Golden Gate National Recreation Area	CA	0.530
Natchez Trace Parkway[c]	AL, MS, TN	0.524
National Capital Parks—East[d]	DC, MD	0.524
Death Valley National Park	CA, NV	0.507
Blue Ridge Parkway	NC, VA	0.491
Lake Mead National Recreation Area	AZ, NV	0.480
Grand Teton National Park	WY	0.341
Point Reyes National Seashore	CA	0.337
Chesapeake & Ohio Canal National Historical Park	DC, MD, WV	0.324
Glen Canyon National Recreation Area	AZ, UT	0.314
Great Smoky Mountains National Park	NC, TN	0.308
Delaware Water Gap National Recreation Area	NJ, PA	0.304
Sequoia and Kings Canyon National Park	CA	0.299

Source: CRS, using data from NPS, "Infrastructure: By the Numbers," https://www.nps.gov/subjects/infrastructure/deferred-maintenance.htm. DM = deferred maintenance.

a. NPS reports DM for the National Mall and Memorial Parks as a rounded number of $1.3 billion (https://www.nps.gov/subjects/infrastructure/upload/National-Mall-and-Memorial-Parks-Deferred-Maintenance-and-Repairs-Factsheet.pdf). The National Mall and Memorial Parks unit consists of 14 individual memorials, monuments, and other park units (e.g., Vietnam Veterans Memorial).
b. The George Washington Memorial Parkway also includes Arlington House; Clara Barton National Historic Site; LBJ Memorial Grove on the Potomac; Potomac Heritage National Scenic Trail; and Theodore Roosevelt Island.
c. The Natchez Trace Parkway also includes Natchez Trace National Scenic Trail and Tupelo National Battlefield.
d. National Capital Parks—East includes the Baltimore-Washington Parkway, Carter G. Woodson Home National Historic Site, Fort Washington Park, Greenbelt Park, Mary McLeod Bethune Council House National Historic Site, Piscataway Park, and Frederick Douglass National Historic Site.

Estimating NPS Deferred Maintenance

NPS estimates the DM needs of park assets through a multi-step process. Park staff record data about the condition of individual assets in a software system, which generates estimates of each asset's maintenance and repair needs.[16] Over the years, NPS has evolved its methods for estimating DM.[17] The changes have included, among others, redefining the set of assets for which DM is tracked and changing the inputs and formulas that generate financial estimates of DM needs. NPS has stated that such changes aim to bring estimation methods into line with industry standards and provide "a more comprehensive understanding of facility conditions."[18] In a September 2023 report, the DOI OIG found that despite the changes, the data in NPS's software system remained "inaccurate and unreliable ... possibly underestimating the figures in some cases and overestimating in others."[19] NPS has taken several steps in response to the DOI OIG report.[20]

In recent years, several methodological changes have affected the agency's DM estimates. According to NPS and the DOI OIG, such changes include the following:

- Starting with its DM estimates for FY2021, NPS changed its DM cost estimating formula by adding a "blanket" 35% markup to DM for non-transportation assets.[21] NPS stated that this markup was equivalent to a markup used by the Federal Highway Administration (FHWA) in estimating DM needs for NPS transportation assets (e.g., park roads) and that the markup thus created "consistency" between transportation and non-transportation assets.[22] Similar to FHWA's markup, NPS's markup is intended to reflect costs of compliance,

[16] For more information on NPS's process, see DOI OIG September 2023 report, pp. 7-9.

[17] Other federal land management agencies also have evolved their methods of calculating DM. For a discussion of methodological changes over time for multiple agencies, including NPS, see CRS Report R43997, *Deferred Maintenance of Federal Land Management Agencies: FY2013-FY2022 Estimates and Issues*, by Carol Hardy Vincent, section on "Methodologies Used by Agencies."

[18] See, for example, NPS, "Infrastructure: Frequently Asked Questions" (question on "Why did the National Park Service maintenance backlog double since 2018?"), https://www.nps.gov/subjects/infrastructure/faqs.htm.

[19] DOI OIG September 2023 report, p. 1.

[20] DOI OIG September 2023 report, pp. 33-36; also see NPS FY2027 budget justification, pp. 180-181.

[21] DOI OIG September 2023 report, pp. 6, 41.

[22] See NPS responses to the DOI OIG's draft of the September 2023 report, in ibid., pp. 41, 45, 56. The Federal Highway Administration (FHWA) works with NPS (and other land management agencies) to estimate and address DM for certain transportation-related assets.

design, construction management, and project management, which were not accounted for in earlier estimates.[23]

- Starting with its DM estimates for FY2022, NPS changed its process for calculating park assets' DM needs. NPS had previously calculated DM for its assets based on the estimated costs from open DM work orders at the end of each fiscal year. As of FY2022, NPS shifted to a method based on its visual condition assessments of assets, which are considered in conjunction with the current replacement value for an asset.[24] NPS stated that this "parametric condition assessment" method is "an accepted industry standard" that will "improve consistency across reporting cycles, and enhance comparability of DM&R [deferred maintenance and repairs] data over time."[25] As of its FY2027 budget justification, NPS stated that it had completed "the majority of validation & verification" activities associated with the shift to this method.[26]
- Starting with its DM estimates for FY2023, NPS changed the set of assets for which it tracks and reports DM.[27] Prior to this time, NPS tracked a set of approximately 75,000 assets to produce its DM estimates.[28] However, NPS reported on somewhat different groupings of NPS assets to two other entities—the FASAB, for annual DOI agency financial reports, and the General Services Administration (GSA), for its Federal Real Property Profile (FRPP)—owing to specific reporting requirements of these two entities.[29] Starting with its reporting of FY2023 DM, NPS aligned its base asset portfolio with the portfolio reported to the GSA for the FRPP. As a result, NPS now reports a portfolio of approximately 71,000 assets (rather than the 75,000 assets used earlier).[30]
- For DM estimates starting in FY2023, NPS incorporated a new "road model update" from FHWA to estimate DM for NPS transportation assets. NPS stated that the new financial model "cumulatively account[s] for general inflation from

[23] DOI OIG September 2023 report, p. 41. More specifically, the 35% markup breaks down to 5% for compliance, 17% for design, 8% for construction management, and 5% for project management.

[24] DOI OIG September 2023 report, pp. 11, 24, 33. Using this "parametric condition assessment" method, NPS makes visual assessments of various aspects of an asset (e.g., for a trail, the plants and trees along the trail, the trail surface, constructed trail features such as steps or bridges, etc.) and scores them on a scale of 0 to 9 based on their condition (e.g., score of 9 for "great condition," score of 1 for "poor condition," or score of 0 if the aspect is not applicable). NPS then uses a "parametric scoring tool" to convert the condition scores to DM estimates. The visual assessments are to be performed annually, with a "comprehensive review" every five years.

[25] NPS FY2027 budget justification, p. 179. NPS is using condition assessments for non-transportation assets, while using assessments made by FHWA for paved roads, parking areas, bridges, and tunnels (NPS FY2027 budget justification, p. 179).

[26] NPS FY2027 budget justification, p. 179.

[27] Information in this paragraph is from NPS's FY2025 and FY2027 budget justifications; CRS communication with the NPS Office of Legislative and Congressional Affairs on August 1, 2023, and April 17, 2024; and previous NPS Asset Inventory Summaries archived by CRS from the NPS website.

[28] These assets were reported in NPS's Real Property Inventory Report (previously called the Asset Inventory Summary).

[29] See DOI, "Agency Financial Reports," https://www.doi.gov/pfm/afr; and General Services Administration (GSA), "Federal Real Property Profile Management System," https://www.gsa.gov/policy-regulations/policy/real-property-policy-division-overview/asset-management/federal-real-property-profile-frpp.

[30] NPS FY2027 budget justification, p. 180; NPS FY2025 budget justification, pp. SpecEx-1 to SpecEx-2; and NPS FY2024 budget justification, p. SpecEx-2.

> recent years" and was responsible for a 36% increase in estimated DM for NPS paved roads between FY2022 and FY2023.[31]

It can be difficult to determine to what extent methodological changes such as these have been responsible for variations in NPS's estimated DM over the years. The DOI OIG found that of the approximately $8.8 billion increase in NPS DM between FY2020 and FY2021, approximately $3.7 billion was attributable to the new 35% markup for non-transportation assets.[32] NPS stated that other factors in the FY2020-FY2021 increase included insufficient funding for annual maintenance needs (thus creating more DM) and increased construction and maintenance costs due to inflation.[33]

In other cases, such as with the shift to estimating DM through condition assessments rather than work orders, the effects of the change on DM estimates are unclear. Also unclear are the impacts, if any, of the FY2023 change in the portfolio of assets NPS tracks, as compared with the set of assets tracked in FY2022 and previous years. To the extent that NPS is tracking DM for fewer assets than it previously did, this could lower estimated DM compared with earlier years, although any such effects would be difficult to measure given other factors also affecting DM.

In general, the DOI OIG found that NPS "does not have a monitoring mechanism to ensure the accuracy and completeness of its … data" and that "without reliable data, the NPS cannot make informed decisions on how to manage its deferred maintenance, improve program effectiveness and accountability, and potentially enhance decision making."[34] However, the OIG noted steps NPS has taken to improve data quality and monitoring, such as directing park staff to rectify data anomalies and to annually review the accuracy of condition assessment scoring.[35]

Funding for NPS Deferred Maintenance

NPS has used discretionary and mandatory appropriations, allocations from the Department of Transportation, park entrance and recreation fees, donations, and other funding sources to address the DM backlog. Often it is not possible to determine the total amount of funding from these sources that NPS has allocated each year to address DM, because NPS does not specifically aggregate these amounts in its budget reporting.[36] From FY2021 to FY2025, NPS received a notable increase in its financial resources to address DM through the National Parks and Public Land Legacy Restoration Fund (Legacy Restoration Fund, or LRF; 54 U.S.C. §§200401-200402), a five-year fund for DM of multiple land management agencies.

[31] NPS FY2025 budget justification, pp. SpecEx-1 to SpecEx-2.

[32] DOI OIG September 2023 report., p. 6.

[33] DOI OIG September 2023 report, p. 50.

[34] DOI OIG September 2023 report, p. 15.

[35] DOI OIG September 2023 report, pp. 23-24.

[36] Although it is not possible to determine amounts allocated specifically to NPS DM, GAO estimated amounts allocated for *all* NPS infrastructure management, from sources other than the National Parks and Public Land Legacy Restoration Fund (LRF), for FY2018-FY2022 (GAO January 2024 report, p. 7). These estimates included funding for all types of maintenance (DM, cyclic maintenance, and day-to-day maintenance activities) as well as for activities that go beyond maintenance, such as infrastructure modernization. GAO estimated that during FY2018-FY2022, NPS's annual non-LRF funding for all types of infrastructure management ranged from $1.701 billion to $2.008 billion.

The Legacy Restoration Fund

In 2020, the Great American Outdoors Act (GAOA) established the LRF to address DM of five agencies (NPS, FS, BLM, FWS, and the Bureau of Indian Education).[37] The fund received annual deposits over five years (FY2021-FY2025) of amounts equal to 50% of all federal energy development revenues—from oil, gas, coal, or renewable energy—that were credited in the preceding fiscal year as miscellaneous receipts to the Treasury, up to a cap of $1.900 billion annually. NPS received a 70% share, with the remainder going to the other agencies at specified percentages. The LRF received the maximum allowable deposit of $1.900 billion each year, with 70% of this total ($1.330 billion annually) going to NPS, for a cumulative total of $6.650 billion for DM over the five-year period. Bills in the 119th Congress would reauthorize deposits to the LRF for FY2027-FY2031 and make other changes; for discussion, see CRS Insight IN12729, *Legacy Restoration Fund for Deferred Maintenance: 119th Congress Reauthorization Bills*.

The GAOA contained provisions for allocating LRF funding to individual DM projects. The GAOA directed the President to submit lists of projects to be addressed with LRF funds in agencies' annual budget submissions to Congress.[38] Congress, in appropriations acts, could accept the President's proposals or provide alternate allocations (while adhering to the overall funding percentages defined for each agency).[39] For FY2021-FY2025, appropriators generally, but not always, allocated the NPS funds as proposed by NPS.

The GAOA required that NPS and other agencies use the LRF funding for "priority deferred maintenance projects," and that at least 65% of each agency's monies over the term of the fund be used for non-transportation projects.[40] DOI and NPS developed additional selection criteria for GAOA projects.[41] In early 2024, GAO examined the land management agencies' processes for selecting LRF projects and found that the agencies, including NPS, "generally followed leading practices for managing deferred maintenance in their processes for selecting projects for LRF funding."[42]

[37] For more information, see CRS In Focus IF12888, *The Great American Outdoors Act (GAOA): Frequently Asked Questions*, by Carol Hardy Vincent and Laura B. Comay.

[38] 54 U.S.C. §200402(h). For the first year of the fund (FY2021), the President was directed to submit a project list within 90 days of the GAOA's enactment (54 U.S.C. §200402(g)).

[39] 54 U.S.C. §200402(i)(1).

[40] 54 U.S.C. §200402(e).

[41] For a detailed discussion of both DOI's and NPS's criteria for project selection, see GAO January 2024 report, pp. 15-21. The DOI-wide criteria prioritized projects that addressed a significant amount of DM, maximized return on investment, and safeguarded staff and visitors (NPS FY2025 budget justification, p. LRF-2). Within NPS, a committee of "senior managers" made the project selections and considered additional criteria including the business case for the investment and the timeliness of obligation. The committee also considered the extent to which projects addressed critical assets at risk of failure; had critical life, health, safety, or environmental impacts; addressed accessibility needs; involved demolition or disposal of unneeded facilities; and had a relatively high percentage of net construction costs that addressed DM (ibid., p. LRF-3). Finally, NPS in some years prioritized "large-scale projects" for LRF funding, since the LRF might be the only source with sufficient funds to complete these projects, whereas smaller-scale projects could be addressed through other, smaller funding sources (see, for example, NPS FY2024 budget justification, p. LRF-3; and NPS FY2023 budget justification, p. LRF-2).

[42] GAO January 2024 report, p. 19. The "leading practices" identified in the report were derived from the National Research Council. The strategies include establishing clear objectives and setting priorities among the outcomes to be achieved, establishing performance goals and measures, identifying primary delivery methods, aligning property portfolios with mission needs and disposing of unneeded assets, identifying risks posed by lack of timely investment, and identifying mission-critical and mission-supportive assets (pp. 19-21).

Annual Appropriations for NPS Deferred Maintenance

Outside of the LRF, much of the funding used to address NPS DM has come from annual appropriations, primarily through the agency's Operation of the National Park System (ONPS) and Construction accounts. Because both accounts fund other activities in addition to DM, it is unclear how much funding under these programs has gone directly to address the DM backlog.

Within the ONPS account, annual appropriations reports have identified funding for NPS "maintenance, repair, or rehabilitation projects," and NPS uses these amounts for both DM and other types of maintenance.[43] NPS has historically used this funding for projects with anticipated costs of less than $2 million each.[44] For FY2026, Congress provided $157.2 million for maintenance, repair, or rehabilitation projects.[45]

Within the Construction account, NPS has historically used funding in the Line-Item Construction program for DM projects (among other projects) expected to cost $2 million or more.[46] For FY2026, Congress did not provide funding for Line-Item Construction projects, except for one project designated as community project funding/congressionally directed spending. The joint explanatory statement for P.L. 119-74 stated that this activity was not funded because NPS did not submit a list of line-item project funding requests.[47]

Portions of other NPS discretionary budget activities and accounts also are sometimes used for DM. These include other programs within the ONPS and Construction accounts as well as NPS's Centennial Challenge account (discussed below under "Other NPS Funding for Deferred Maintenance").

Combined discretionary appropriations for maintenance, repair, or rehabilitation projects within the ONPS account and Line-Item Construction within the Construction account—the two primary sources of annual appropriations for NPS DM—declined after the LRF funding became available. Comparing FY2020 combined funding for the two programs (prior to establishment of the LRF) with FY2026 combined funding, the appropriations decreased by 62% in nominal dollars.[48]

[43] In past years, NPS budgets have accounted for this funding in a line item called Repair & Rehabilitation. (NPS did not submit a budget justification to Congress for FY2026, and its FY2027 budget did not include detailed line items.)

[44] See, e.g., NPS FY2025 budget justification, p. ONPS-67. NPS did not provide information on the use of this funding for FY2026 and FY2027, and it is unclear whether this policy remains.

[45] P.L. 119-74, as amended by P.L. 119-75, Division D, Section 426(d).

[46] See, e.g., NPS FY2025 budget justification, p. ONPS-67.

[47] Joint explanatory statement for P.L. 119-74, *Congressional Record*, January 8, 2026, p. H475: "At the time of this writing, the Committees have not received a list of requested line-item construction projects for fiscal year 2026. Therefore, the requested funding for Line-Item Construction in fiscal year 2026 has been shifted in the bill to repair and rehabilitation projects within the Operation of the National Park System."

[48] The combined funding (in nominal dollars) was $418.9 million in FY2020, $267.8 million in FY2021, $272.7 million in FY2022, $262.7 million in FY2023, $191.6 million in FY2024, $191.6 million in FY2025, and $160.4 million in FY2026. Amounts are drawn from annual appropriations laws (for maintenance, repair, or rehabilitation within the ONPS account) and joint explanatory statements (for Line-Item Construction within the Construction account) for FY2020-FY2026, except for FY2025, in which a full-year continuing resolution (P.L. 119-4) provided appropriations at FY2024 levels. For FY2026, the amount for maintenance, repair, or rehabilitation in P.L. 119-74 was amended by P.L. 119-75, Section 426(d).

Transportation Funding from the Highway Trust Fund

Like other federal land management agencies, NPS receives mandatory appropriations from the Highway Trust Fund to address transportation needs, including transportation-related DM.[49] As with discretionary appropriations, NPS uses these funds for both DM and other work on transportation assets (e.g., preventive maintenance), and does not record the portion of funding that is used specifically to address DM.[50]

Funds are provided to NPS by FHWA, primarily through the Federal Lands Transportation Program (FLTP), which was most recently reauthorized by the Infrastructure Investment and Jobs Act (IIJA).[51] Under the IIJA, NPS's annual FLTP allocation grew from $332.4 million in FY2022 to $360.0 million in FY2026. Through related federal highway programs in the IIJA, such as the Federal Lands Access Program and others, NPS could receive additional funding.[52]

In FY2023 (the most recent year reported), the federal highway programs funded more than half of NPS's spending on transportation maintenance and improvements.[53] NPS has noted, however, that its transportation projects may often require greater investments than can be supported by the available funding from the FLTP and related programs.[54] NPS has stated that the cost of major transportation projects can range from $25 million to nearly $1 billion, with the costs of some individual projects exceeding NPS's entire FLTP allocation for a given year.[55] Mandatory appropriations from the LRF—the GAOA's DM fund—also were available for transportation projects for FY2021-FY2025, although the GAOA funding for transportation projects was capped at no more than 35% of NPS's total LRF allotment over the five-year life of the fund.[56]

Park Entrance and Recreation Fees

Park entrance and recreation fees collected under the Federal Lands Recreation Enhancement Act may be used for DM, among other purposes.[57] The fees are available for use without further

[49] For information on the Highway Trust Fund, see CRS Report R47573, *Funding and Financing Highways and Public Transportation Under the Infrastructure Investment and Jobs Act (IIJA)*, by Robert S. Kirk and William J. Mallett.

[50] Under the Federal Lands Transportation Program (FLTP; 23 U.S.C. §203), allowable uses of the funding include, among others, transportation planning, program administration, research, preventive maintenance, engineering, rehabilitation, restoration, construction, and reconstruction of federal lands transportation facilities.

[51] Infrastructure Investment and Jobs Act (IIJA), P.L. 117-58, §11101. For information on surface transportation reauthorization activities in the 119th Congress, see CRS Report R48845, *Surface Transportation Reauthorization: Federal Highway Programs*, by Ali E. Lohman.

[52] The Federal Lands Access Program (23 U.S.C. §204) funds planning, maintenance, and repair activities for roads and transportation facilities adjacent to or accessing federal lands. Other programs include the Nationally Significant Federal Lands and Tribal Projects Program (P.L. 117-58, §11127; 23 U.S.C. §201 note). See Federal Highway Administration, Office of Federal Lands Highway, "Programs," https://flh.fhwa.dot.gov/programs/.

[53] NPS FY2025 budget justification, p. FLTP-2. The remaining transportation improvements were funded through sources such as NPS discretionary appropriations in the ONPS account, the LRF, and transportation fees collected under authority at 54 U.S.C. §101531.

[54] See, for example, NPS, "Mega Projects: Transportation Needs Beyond the Capacity of the Core Program," archived from the web on April 16, 2022, https://web.archive.org/web/20220416031908/https://www.nps.gov/subjects/transportation/megaprojects.htm.

[55] Ibid., and fact sheets for individual projects (e.g., Memorial Bridge, archived from the web on April 27, 2021, https://web.archive.org/web/20210427075629/https://www.nps.gov/articles/memorial-bridge-repair-and-reconstruction.htm; and Colonial Parkway, archived from the web on March 2, 2021, https://web.archive.org/web/20210302233541/https://www.nps.gov/articles/colonial-parkway.htm).

[56] 54 U.S.C. §200402(e)(2).

[57] Federal Lands Recreation and Enhancement Act (FLREA; 16 U.S.C. §§6801-6814). For more information, see CRS (continued...)

appropriation, and most are retained at the collecting parks.[58] Fee collections may be used for purposes benefiting visitors, including facility maintenance and repair, interpretation and visitor services, law enforcement, and others. NPS policies require parks to obligate at least 55% of the collections to "deferred and preventive facility maintenance projects."[59] In its FY2027 budget justification, NPS estimated FY2026 entrance and recreation fee collections at $596.0 million.[60]

Concessions Franchise Fees

NPS collects concessions franchise fees from park concessioners that provide services such as lodging and dining at park units. The fees, collected under the National Park Service Concessions Management Improvement Act of 1998, are typically set as a percentage of a concessioner's gross receipts.[61] The fees are available for use without further appropriation and are mainly retained at the collecting parks.[62] They may be used to reduce DM (including concessions-related DM) and are also used for other NPS concessions-related activities, such as contract development and payment of leasehold surrender interest (an amount owed to concessioners that have invested in improvements to NPS infrastructure).[63] In its FY2027 budget justification, NPS estimated concessions fee collections of $206.1 million for FY2026.[64]

Other NPS Funding for Deferred Maintenance

The National Park Service Centennial Act (Centennial Act) established the NPS Centennial Challenge Fund.[65] The fund provides a federal match to private-sector donations for NPS projects and programs that "further the mission of the Service and … enhance the visitor experience in System units."[66] The fund receives both discretionary appropriations and offsetting collections made up of certain amounts from sales of entrance passes to seniors.[67] In selecting projects and programs to receive the funding, the Secretary of the Interior is to prioritize DM, physical improvements to visitor service facilities, and trail maintenance.[68] The FY2026 appropriation for

In Focus IF10151, *Federal Lands Recreation Enhancement Act: Overview and Issues Related to Recreation Fees*, by Carol Hardy Vincent.

[58] In most cases, at least 80% of the revenue collected is retained and used at the site where it was generated. The remaining collections are placed in a central fund that can be used throughout the park system. Some parks retain 100% of the fee collections, and parks could retain as low as 60% if the collected revenue exceeded "the reasonable needs of the unit" for that fiscal year (16 U.S.C. §6806(c)(1)(B)).

[59] NPS FY2027 budget justification, p. 143.

[60] NPS FY2027 budget justification, p. 144. The total includes fees collected under FLREA and the Deed-Restricted Parks Fee Program, which covers three parks prohibited by deed restrictions from collecting entrance fees.

[61] NPS Concessions Management Improvement Act of 1998, 54 U.S.C. §§101911 et seq.; see especially §101917.

[62] The collecting unit typically retains 80% of the fees, and the remainder are placed in a special account to support activities throughout the park system (54 U.S.C. §101917(c)).

[63] NPS FY2027 budget justification, p. 153.

[64] Ibid., p. 154. The amount includes both concessions franchise fees and an earlier type of fee used in some older concessions contracts ("concessions improvement accounts").

[65] National Park Service Centennial Act, P.L. 114-289.

[66] 54 U.S.C. §103501(c).

[67] Amounts collected in excess of $10 million from NPS sales of National Parks and Federal Recreational Lands passes for seniors are to be deposited into the Centennial Challenge Fund as offsetting collections (54 U.S.C. §103501(b)).

[68] 54 U.S.C. §103502(a)(3).

the Centennial Challenge Fund in P.L. 119-74 was $5.0 million.[69] NPS estimated that senior pass sales would provide $8.5 million for the fund in FY2026.[70]

The Centennial Act also established the NPS Second Century Endowment and directed that the endowment receive revenues from senior pass sales totaling $10 million annually.[71] In addition, the endowment is authorized to receive gifts, devises, and bequests from donors. The funds may be used for projects approved by the Secretary of the Interior that further the mission and purposes of NPS, including projects on the maintenance backlog. For FY2025 (the most recent year available), the National Park Foundation, which administers the endowment, reported spending $1.0 million from the endowment on unspecified projects.[72]

Other NPS mandatory appropriations also have been partially used for DM. These include donations, monies collected under the Park Building Lease and Maintenance Fund, transportation fees collected under the Transportation Systems Fund, and rents and payroll deductions for the use and occupancy of government quarters, among others. NPS estimated varying amounts for these mandatory appropriations for FY2026.[73]

Issues for Congress

In the 119th Congress, debate about NPS DM has focused on potential reauthorization of deposits to the LRF, the DM fund established by the GAOA. H.R. 9250, as ordered reported by the House Committee on Natural Resources, and S. 1547, as reported by the Senate Committee on Energy and Natural Resources, would reauthorize deposits to the fund for FY2027-FY2031 and make other changes related to the distribution and use of monies, streamlining project implementation, and ensuring the accuracy of DM data, among other matters. For further discussion, see CRS Insight IN12729, *Legacy Restoration Fund for Deferred Maintenance: 119th Congress Reauthorization Bills*.

Congressional oversight of the LRF after its 2020 establishment raised multiple issues that have informed legislation in the 119th Congress. Some Members questioned whether the fund was an effective tool for NPS, given that the NPS backlog grew rather than decreased after FY2020 (**Figure 1**). NPS has emphasized that despite factors leading to growth in the DM estimates—changes in DM estimation methods, inflation in the costs to execute projects, and new maintenance needs—the LRF has played a major role in addressing the backlog. NPS estimated in August 2025 that the FY2021-FY2025 LRF funding would address $4.7 billion in DM upon completion of the funded projects.[74] GAO has stated that another positive impact of the LRF is that it has "fostered a cultural change [at the land management agencies] toward maintaining better data on deferred maintenance."[75] Nonetheless, GAO still noted issues with unclear

[69] NPS FY2027 budget justification, p. 46.

[70] NPS FY2027 budget justification, p. 157.

[71] 54 U.S.C. §101121.

[72] National Park Foundation, *Financial Statements for the Years Ended September 30, 2025 and 2024*, p. 31, https://www.nationalparks.org/uploads/National-Park-Foundation-FY25-Financial-Statements.pdf.

[73] NPS FY2027 budget justification, pp. 145 and 153-154.

[74] DOI, *Leaving a Legacy: The Great American Outdoors Act National Parks and Public Land Legacy Restoration Fund, 2021-2025*, August 2025, https://www.doi.gov/sites/default/files/documents/2025-08/final508leaving-legacygaoa-lrf20250801.pdf.

[75] Testimony of Cardell Johnson, GAO, in U.S. Congress, House Committee on Natural Resources, Subcommittee on Federal Lands, *National Park Service's Deferred Maintenance Backlog: Perspectives from the Government Accountability Office and the Inspector General*, hearing, 118th Cong., 2nd sess., January 10, 2024, pp. 5-6, (continued...)

reporting by NPS and other DOI agencies on reasons for changes in DM estimates, which have compromised the availability of information Congress may need for its decisionmaking.[76] GAO stated that, "in the absence of additional information on agencies' DM&R estimates, Congress and the public are limited in their ability to determine the true impact of DM&R on agency operations or the actual amount of funding needed to address the DM&R backlog."[77] H.R. 9250, as ordered reported, and S. 1547, as reported, would require NPS and other agencies to establish "clear, quantifiable, and standardized metrics" for calculating DM and to meet other data criteria.

Some Members also questioned the geographic distribution of NPS's LRF projects, expressing concern about uneven distribution of the funding across states and regions.[78] NPS's criteria for LRF project selection did not explicitly include geographic distribution; in contrast, FS's criteria for choosing LRF projects included a requirement that 40% of LRF funding go to "regional priority projects" across the FS regions.[79] A related concern for some was the distribution of LRF funds among large versus small parks and urban versus rural parks.[80] H.R. 9250, as ordered reported, and S. 1547, as reported, would require NPS and other agencies to achieve a "reasonable balance" between projects at higher- and lower-visitation units.[81]

Outside of debates about the LRF, some Members of Congress have advocated for prioritizing annual discretionary appropriations for NPS deferred and cyclic maintenance, especially in light of declines in this annual funding since enactment of the LRF (see section on "Annual Appropriations for NPS Deferred Maintenance").[82] Some emphasize the importance of annual appropriations for preventing further growth of the backlog and point out that the GAOA stated that no amounts in the LRF were to be used to "supplant discretionary funding made available for annually recurring facility operations, maintenance, and construction needs."[83] In contrast, some other Members of Congress, as well as NPS officials on some occasions, have expressed that the availability of LRF funding could allow annual appropriations to be used for NPS priorities other

https://naturalresources.house.gov/uploadedfiles/testimony_johnson.pdf; hereinafter cited as "House Natural Resources Committee January 2024 hearing."

[76] GAO, *Federal Real Property: Agencies Should Provide More Information About Increases in Deferred Maintenance and Repair*, GAO-24-105485, November 2023, pp. 18-24, https://www.gao.gov/products/gao-24-105485. GAO stated that "agency officials said they do not report additional information on their DM&R estimates because they are not required to do so" (p. 25).

[77] Ibid., p. 26.

[78] See, for example, remarks of Rep. Tom Tiffany and questions for the record from Rep. Bruce Westerman, H.Hrg. 118-16, pp. 2, 9; and questions for the record from Sen. Steve Daines, Senate Committee on Energy and Natural Resources, Subcommittee on National Parks, *Implementation of the Great American Outdoors Act*, 117th Cong., 2nd sess., February 9, 2022, S.Hrg. 117-462, p. 69, https://www.govinfo.gov/content/pkg/CHRG-117shrg46848/pdf/CHRG-117shrg46848.pdf; hereinafter cited as "S.Hrg. 117-462." For information on the NPS regions, see NPS, "About Us," https://www.nps.gov/aboutus/contactinformation.htm.

[79] The U.S. Forest Service stated that "this model of supporting both national and regional priorities was developed because the Forest Service recognizes community and state priorities may not result in projects that are selected nationally. As a result of this approach, the Forest Service project list provides an investment in deferred maintenance reduction that values both locally and nationally significant projects." Testimony of Forest Service Deputy Chief Christopher French, S.Hrg. 117-462.

[80] For example, see remarks of Reps. Tom Tiffany, Bruce Westerman, and Pete Stauber, H.Hrg. 118-16, pp. 2, 13-14, 26; and questions for the record from Sen. Mazie Hirono, S.Hrg. 117-462, pp. 72-73.

[81] This requirement would apply to NPS, BLM, FS, and FWS, but not to the Bureau of Indian Education.

[82] For example, see remarks by Sen. Angus King in U.S. Congress, Senate Committee on Energy and Natural Resources, *Hearing to Examine the President's Budget Request for the U.S. Department of the Interior for Fiscal Year 2025*, hearing, 118th Cong., 2nd sess., May 2, 2024, https://www.energy.senate.gov/hearings/2024/5/full-committee-hearing-to-examine-the-president-s-budget-request-for-the-u-s-department-of-the-interior-for-fiscal-year-2025; and remarks by Rep. Ed Case at House Natural Resources Committee January 2024 hearing.

[83] 54 U.S.C. §200402(f)(2).

than maintenance (such as facility improvements), given limitations on overall funding for NPS and other DOI agencies.[84]

Some stakeholders have proposed additional options to increase funding for NPS infrastructure maintenance, beyond annual appropriations and the LRF. Options could include increasing the revenues that NPS collects, such as by raising park fees or introducing tolling on park highways that are used as commuter routes (e.g., in the region around Washington, DC).[85] In FY2026, pursuant to Executive Order 14314, NPS introduced a $100 surcharge for international visitors to 11 national parks, and the land management agencies also raised the price of their multiagency pass for international visitors.[86] H.R. 9250, as ordered reported, and S. 1547, as reported, would codify international visitor fee increases and would deposit revenues from the increases in the LRF.[87] Some also have proposed funding NPS DM through monies from the Land and Water Conservation Fund, income tax overpayments and contributions, taxes on outdoor recreation gear, motor fuel taxes, DOI land sales, or revenues from coin and postage stamp sales.[88] Others have opposed such proposals as diverting federal funds from other valued uses or imposing unnecessary fees on the public.

Various proposals have focused on ways NPS could reduce DM without the use of additional funds. Some have suggested that this could be accomplished by increasing the role of nonfederal partners in park management (e.g., by leasing more historic buildings to private businesses or transitioning NPS-operated campgrounds to concessioner management); by promoting volunteer assistance (e.g., through conservations service corps); by expanding the role of friends-of-the-park groups and similar nonprofits in NPS maintenance and construction projects; by disposing of unneeded structures in poor repair; or by transferring some NPS assets (e.g., commuter roads) out

[84] For example, see testimony of NPS Director Charles Sams in H.Hrg. 118-16, p. 7; and remarks by Rep. David Joyce in U.S. Congress, House Committee on Appropriations, Subcommittee on Interior, Environment, and Related Agencies, *Fiscal Year 2023 Budget Request for the National Park Service*, hearing, 117th Cong., 2nd sess., May 18, 2022, hearing transcript available at https://plus.cq.com/doc/congressionaltranscripts-6540556?2.

[85] See questions for the record by Rep. Tom McClintock in H.Hrg. 115-39, p. 12; Pew Charitable Trusts, *Protecting Our Parks: A Strategic Approach to Reducing the Deferred Maintenance Backlog Facing the National Park Service*, Spring 2019, https://www.pewtrusts.org/-/media/assets/2019/05/protecting-our-parks-report_low-res.pdf, hereinafter Pew Charitable Trusts, *Protecting Our Parks*; and Property and Environment Research Center (PERC), *How Overseas Visitors Can Help Steward Our National Parks*, December 2023, https://www.perc.org/2023/12/21/how-international-visitors-can-help-steward-our-national-parks/.

[86] For more information, see CRS In Focus IF13098, *National Park Service: Fee Increases for International Visitors*, by Laura B. Comay and Jill H. Wilson.

[87] Under current law, distribution of revenues from the 2026 fee increases is governed by the Federal Lands Recreation Enhancement Act (FLREA); see above, section on "Park Entrance and Recreation Fees."

[88] See, for example, DOI, *The Interior Budget in Brief, Fiscal Year 2026*, p. DH-13, https://www.doi.gov/sites/default/files/documents/2025-06/fy26bibentire-book508060125_0.pdf; Heritage Foundation, *Budget Proposals: Interior, Environment, and Related Agencies*, May 20, 2019, https://www.heritage.org/blueprint-balance/budget-proposals/interior-environment-and-related-agencies; Heritage Foundation, "Permanent Reauthorization of Land and Water Conservation Fund Opens Door to Permanent Land Grabs," January 22, 2019, https://www.heritage.org/environment/report/permanent-reauthorization-land-and-water-conservation-fund-opens-door-permanent; Resources for the Future, *Efficiency and Equity of an Outdoor Recreation Equipment Tax to Fund Public Lands*, December 2020, https://www.rff.org/publications/working-papers/efficiency-and-equity-of-an-outdoor-recreation-equipment-tax-to-fund-public-lands; statement for the record by the Western Energy Alliance, S.Hrg. 117-462, pp. 139-140; Center for Western Priorities, *Funding America's Public Lands Future*, November 2019, https://westernpriorities.org/resource/funding-americas-public-lands-future/; and National Park Hospitality Association and National Parks Conservation Association, *Sustainable Supplementary Funding for America's National Parks*, March 19, 2013. Also see S. 2783 (116th Cong.), H.R. 2863 (115th Cong.); S. 268 (114th Cong.); H.R. 5220 (113th Cong.); H.R. 1731 (110th Cong.); H.R. 3094 (110th Cong.); S. 2817 (110th Cong.); S. 886 and H.R. 1124 (109th Cong.); and H.R. 5358 (108th Cong.).

of federal ownership.[89] NPS and other stakeholders have identified challenges in considering some of these options, including challenges related to the costs and procedures for disposing of unneeded assets,[90] limitations to authorities for federal-nonfederal partnerships for infrastructure project management,[91] and regulatory and market obstacles to expanded use of leasing authority.[92] Debate continues on the optimal strategies for reducing NPS deferred maintenance and the extent to which this should be a priority for NPS and for Congress.

Author Information

Laura B. Comay
Specialist in Natural Resources Policy

Disclaimer

This document was prepared by the Congressional Research Service (CRS). CRS serves as nonpartisan shared staff to congressional committees and Members of Congress. It operates solely at the behest of and under the direction of Congress. Information in a CRS Report should not be relied upon for purposes other than public understanding of information that has been provided by CRS to Members of Congress in connection with CRS's institutional role. CRS Reports, as a work of the United States Government, are not subject to copyright protection in the United States. Any CRS Report may be reproduced and distributed in its entirety without permission from CRS. However, as a CRS Report may include copyrighted images or material from a third party, you may need to obtain the permission of the copyright holder if you wish to copy or otherwise use copyrighted material.

[89] See, for example, H.R. 1577 (115th Cong.); Pew Charitable Trusts, *Protecting Our Parks*; PERC, *Fixing National Park Maintenance for the Long Haul*, November 2020, https://www.perc.org/wp-content/uploads/2020/11/fixing-national-park-maintenance.pdf, hereinafter cited as PERC, *Fixing National Park Maintenance*; questions for the record by Representatives Don Young, Jim Costa, and Tom McClintock, H.Hrg. 115-39, pp. 9-12; and testimony of Jessica Wahl, Outdoor Recreation Roundtable, in U.S. Congress, Senate Committee on Energy and Natural Resources, *Deferred Maintenance Needs and Potential Solutions on Federal Lands Administered by the Department of the Interior and the USDA Forest Service*, 116th Cong., 1st sess., June 18, 2019, S.Hrg. 116-307, pp. 39-41, https://www.govinfo.gov/content/pkg/CHRG-116shrg37803/pdf/CHRG-116shrg37803.pdf, hereinafter cited as "S.Hrg. 116-307."

[90] NPS identifies assets that are candidates for disposal as part of its real property reporting to the GSA (Federal Real Property Public Data Set, https://www.gsa.gov/policy-regulations/policy/real-property-policy/asset-management/federal-real-property-profile-frpp/federal-real-property-public-data-set). For FY2025, NPS identified 907 assets (of a total 70,687 assets) as having the disposal determination; it did not include any DM needs for these assets in its DM total (NPS FY2027 budget justification, p. SpecEx-3).

[91] See, for example, testimony of Dan Puskar, Public Lands Alliance, at S.Hrg. 116-307, pp. 33-34.

[92] See, for example, letter from Olivia B. Ferreter, Deputy Assistant Secretary for Budget, Finance, Performance, and Acquisition, Department of the Interior, to the Senate Committee on Appropriations, Subcommittee on Interior, Environment, and Related Agencies, March 29, 2018, included as Attachment 3 to H.Hrg. 115-39.